

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #10	CCRB Case #: 201809337	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 11/01/2018 10:30 PM	Location of Incident: § 87(2)(b); 10th Precinct stationhouse; En route to § 87(2)(b)	18 Mo. SOL 12/16/2020	Precinct: 10
Date/Time CV Reported Fri, 11/02/2018 4:28 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/08/2018 11:09 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT
2. POM Sean Ahearn	00919	948593	010 PCT
3. Officers			010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Iodice	04581	960479	010 PCT
2. POM Kevin Ouellette	22181	962652	010 PCT
3. POM Michael Fahrback	06948	958566	010 PCT
4. POM Alexander Colon	05591	960381	010 PCT
5. POM Patrick Collins	13268	963923	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Force: At § 87(2)(b), in Manhattan, Sergeant Vincent Fontana used physical force against § 87(2)(b)	A . Closed - Pending Litigation
B . Officers	Force: At the 10th Precinct stationhouse, officers used physical force against § 87(2)(b)	B . Closed - Pending Litigation
C . POM Sean Ahearn	Force: While en route to § 87(2)(b), Police Officer Sean Ahearn used physical force against § 87(2)(b)	C . Closed - Pending Litigation

Case Summary

On November 2, 2018, Sgt. Vincent Fontana of the 10th Precinct filed this complaint on behalf of § 87(2)(b) and § 87(2)(b) with IAB by phone. It was received at the CCRB on November 8, 2018, under IAB log number 2018-43670.

Between November 13, 2018, and November 20, 2018, three voicemails were left with § 87(2)(b) § 87(2)(b)'s attorney. Each time, investigation and the process to request to reopen a case that has been closed pending litigation were explained. On November 26, 2018, § 87(2)(b) § 87(2)(b) contacted the CCRB by phone and stated that he would like § 87(2)(b)'s portion of the complaint to be closed pending litigation because he did not want her to provide a statement at this time.

On November 28, 2018, § 87(2)(b), § 87(2)(b)'s attorney, was contacted by phone. Investigation and the process to request to reopen a complaint that has been closed pending litigation were explained to § 87(2)(b) § 87(2)(b) § 87(2)(b) stated that he wanted to discuss the matter with § 87(2)(b) and he requested that the CCRB contact him on December 6, 2018. On December 6, 2018, § 87(2)(b) § 87(2)(b) was contacted by phone, and he requested that § 87(2)(b)'s portion of the complaint be closed pending litigation because he did not want him to provide a statement at this time.

§ 87(2)(g)

, it is recommended that this case be **closed pending litigation**.

Squad No.: 10

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date